

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: July 20, 2026

TIME: 10:00 A.M.

**TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO
OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and
Civil Local Rule 8.D:**

- (1) Call the Court at (408) 808-6856 before 4:00 P.M.**
- (2) Notify the other side by phone or email before 4:00 P.M. that you plan to
appear and contest the ruling**

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise
ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances.
If you must appear virtually, click on the below link or copy and paste into your internet
browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for
civil/probate law and motion hearings. See court website for policy and forms for
court reporters at hearing

**State and local Court Rules prohibit recording of court proceedings without a Court
order.**

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or
your web browser cache (temporary internet files) is accessing a prior week's rulings.
"REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to
see only the current version of the web page. Your browser will otherwise access old
information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25PR199964	Kais Bypass Trust established under the Kais Family Trust dtd 3/2/94	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2	25PR200153	Jose F. Mata Living Trust dtd 8/18/2010	Off calendar due to request for dismissal

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Calendar line 1

Case Name: Kais Bypass Trust established under the Kais Family Trust dtd 3/2/94

Case No: 25PR199964

INTRODUCTION

Petitioner Deborah Settlemeyer initiated this case by filing a petition to remove Maria Kais (“Maria”) as trustee of the Kais Bypass Trust, which was created under the terms of the Kais Family Trust dated March 2, 1994.¹ After multiple amendments, the currently operative version of the petition is the third amended petition (“TAP”), filed May 18, 2026, which is brought by both Ms. Settlemeyer and Samuel Kais, Jr. (“Sam, Jr.”) In its current iteration, the TAP alleges that settlors Maria and Samuel Kais, Sr. executed the Kais Family Trust and, upon Samuel Kais, Sr.’s death, the Bypass Trust was created. In 2025, Maria, then 90 years of age and in a state of cognitive decline, transferred a Bypass Trust asset, real property near Lake Tahoe (“the Lake Tahoe Property”), to Thomas Kais (“Tom”) and his girlfriend for well below market value, ostensibly due to her lack of liquidity. The TAP specifically alleges that the settlors had intended to keep the Lake Tahoe Property in the family and that Maria signed a power of attorney in favor of Samuel Kais, Jr. (“Sam, Jr.”), giving him the authority to act to preserve the Lake Tahoe Property. (TAP, ¶ 8.) The TAP asserts that the power of attorney was irrevocable because it was coupled with an interest, namely a home equity line of credit (“HELOC”) in the amount of \$1,000,000, which Sam, Jr. and his wife, non-party Elizabeth Kais (“Elizabeth”) signed as co-obligors at Maria’s request. (*Ibid.*) The HELOC is secured by another real property, also used to fund the Bypass Trust (“the San Jose Property”). (*Ibid.*)

In her opposition to the second amended petition, Maria asserted that she decided to sell the Lake Tahoe Property due to lack of liquidity and the financial strain of the HELOC on the San Jose Property. (Opposition to Second Amended Petition, filed March 27, 2026, ¶ 5.)

Currently before the court is Tom’s motion to compel Sam, Jr. to provide further responses to Tom’s special interrogatories, nos. 3 through 21. Sam, Jr. has filed an opposition² and Tom has filed a reply.

¹ Because several of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

² Tom urges the court to decline to consider Tom’s opposition to the motion because it was untimely filed, having been filed July 10, 2026 for a July 20, 2026 hearing date. While the court agrees the opposition was untimely filed, it will exercise its discretion to consider the opposition. (See Code Civ. Proc., § 1005, subd. (b) [opposition is due nine court days before the hearing on the motion]; Cal. Rules Ct., rule 3.1300(d) [court may consider or decline to consider late-filed paper]; *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) The court admonishes Sam, Jr. that failure to timely file documents may result in the court declining to consider them.

DISCUSSION

I. Legal Standard

A responding party must provide non-evasive answers to interrogatories that are “as complete and straightforward...to the extent possible,” and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (Code Civ. Proc., § 2030.220.)³ If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party’s remedy is to seek a court order compelling a further response to the interrogatories. (§ 2030.300.)

II. Background

Tom served a subpoena on Chase bank seeking the entire file related to the HELOC. Sam, Jr. filed a motion to quash the subpoena and Tom filed a competing motion to compel production of the subpoenaed records. The court heard the motions on June 8, 2026 and granted the motion to compel but ordered that the records be produced subject to a protective order. The court ordered the parties to meet and confer regarding the terms of the protective order and then submit the protective order for the court’s signature. If the parties could not agree, the court ordered Tom to submit a proposed order. At this time, the parties have not agreed on the terms of the protective order and the subpoenaed documents have not been produced.

On March 10, 2026, Tom served Sam, Jr. with special interrogatories relating to the HELOC. Sam, Jr. served his responses on May 7, 2026. In response to special interrogatories 3 through 21, Sam, Jr. responded with only objections and did not provide substantive responses. Tom filed the instant motion to compel on June 1, 2026.

III. Merits of the Motion

All of the special interrogatories at issue relate to the HELOC. Sam, Jr. responded to each special interrogatory with objections based on relevance and privacy.⁴ In its order dated June 8, 2026, the court found that the documents related to the HELOC were private but that they were directly relevant to the issues raised in the instant case.

The court has already concluded that information related to the HELOC is relevant in the instant case. Sam, Jr. does not discuss each interrogatory and explain why the information requested is not relevant. (See *Coy*, *supra*, 58 Cal.2d at pp. 220-221 [If a timely motion to compel is filed, the burden is on the responding party to justify any objection].)

Instead, Sam, Jr. contends that Tom already has the HELOC documents and, therefore, he cannot justify the intrusion into Sam, Jr.’s private information. Specifically, he contends that Connie Aljouni, one of the settlors’ children, sent HELOC documents to Tom on October 3,

³ All further undesignated statutory references are to the Code of Civil Procedure.

⁴ Sam, Jr. also made objections on other grounds in connection with some of the special interrogatories. But he does not attempt to justify those objections in opposition to the motion, accordingly those objections are waived. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-221 (*Coy*) [If a timely motion to compel is filed, the burden is on the responding party to justify any objection].)

2024 via email. Sam, Jr. describes the HELOC documents as “6,193 kilobytes in size and contain[ing] a complete, draw-by-draw transaction history of the HELOC account from inception.” (Declaration of Samuel Kais in Support of Opposition to Motion (“Sam Decl.”), ¶ 4.) He also notes that the court found in its June 8, 2026 order that discovery of the HELOC documents sought in the subpoena was supported by Tom’s lack of access to the documents.

In response, Tom argues that the documents sent by Connie Aljouni do not cover the full relevant time period and that the documents are also not a substitute for Sam, Jr.’s responses to the special interrogatories. The court agrees. Notably, several of the interrogatories request information that could not have been contained in the set of documents emailed in 2024. For example, special interrogatory 11 seeks the current balance of the HELOC and special interrogatory 12 seeks information regarding whether funds remain in the HELOC. Special interrogatory 20 asks whether Sam, Jr. has control of funds from the HELOC. Special interrogatories 15, 16, 18, and 19 seek information from 2025. None of these questions can be answered via the documents provided in 2024.

Sam, Jr. contends that Maria’s counsel, Michael Gorini, and Tom misled the court into believing that Tom lacked access to the HELOC records when they were both included on the 2024 email from Connie Aljouni. He further contends that Mr. Gorini solicited the HELOC documents from Ms. Aljouni. Asserting that this is improper and that Mr. Gorini is operating under a conflict of interest, he requests that the court issue a protective barring Mr. Gorini from receiving the responses.⁵ The court finds no basis to make such an order. Section 2030.260, subdivision (c) requires a party responding to interrogatories to “also serve a copy of the response on all other parties who have appeared in the action” unless the court finds that service of the responses on the non-propounding parties would be unduly burdensome or expensive.

Here, Mr. Gorini is Maria’s attorney in connection with these proceedings and Maria is also a signatory on the HELOC account and Sam, Jr. points to no authority indicating that an attorney for a party must seek permission from other individuals to make informal requests for records. Moreover, Sam, Jr. argues that Connie Aljouni informed Mr. Gorini that Sam, Jr. was not a signatory on the HELOC account and thus Mr. Gorini would not have any basis to seek permission from Sam, Jr. to request the records. Accordingly, Sam, Jr. has not established that there was anything improper in Mr. Gorini seeking the HELOC records.

Sam, Jr. also argues that the “Exhibit A” mentioned in special interrogatories 13 and 14 is derived from the allegedly improper receipt of the 2024 email. For the reasons discussed above, this argument is also rejected.

Finally, Sam, Jr. argues that Tom has admitted the basic facts related to the HELOC by admitting a portion of his second amended petition stating, “Sam, Jr. and his wife Betsy Kais are co-obligors on a \$1,000,000, full recourse, Home Equity Line of Credit (‘HELOC’) secured

⁵ Sam, Jr. also makes arguments related to Mr. Gorini’s involvement in the proposed protective order filed by Tom as required by the court’s June 8, 2026 order. The court finds that these arguments are outside the scope of the instant motion to compel further responses. To the extent Sam, Jr. argues that the court should not grant the instant motion until the protective order related to the HELOC subpoena is finalized, the court rejects that argument. Sam, Jr. is required to respond to discovery.

by Maria's San Jose property. The HELOC was effectuated at Maria's request due to her own inability to secure such a loan because of her limited history of earning income." (See Sam Decl., ¶ 12, Ex. A.) But, as Sam, Jr. himself argues, the special interrogatories go well beyond the "basic facts" related to the HELOC and seek information regarding specific transactions. Accordingly, the fact that Tom may have admitted the above statement does not render the facts requested in the special interrogatories irrelevant.

The motion is GRANTED. Further responses are due no later than 30 days after receipt of the final order.

Tom requests sanctions against Sam, Jr. in the amount of \$4,500 under section 2030.300, subdivision (d), which provides for mandatory sanctions when a litigant unsuccessfully opposes a motion to compel further responses to interrogatories unless the litigant acted with substantial justification or other circumstances make the imposition of sanctions unjust. The court finds that sanctions are appropriate. Sam, Jr. did not act with substantial justification in opposing this motion, given that it was filed after the court's June 8, 2026 order finding the HELOC relevant and indicating that privacy concerns could be dealt with through a protective order. Moreover, this court has found that Tom did not already have all of the information requested in the interrogatories. Additionally, the objections were filed late. Accordingly, Tom's request for sanctions in the amount of \$4,500.00 is GRANTED. Sanctions must be paid within 30 days of receipt of the final order.

Sam, Jr.'s request that Tom or other parties or attorneys in this case be sanctioned is DENIED.

CONCLUSION

The motion to compel further responses to interrogatories 3-21 is GRANTED. Tom's request for sanctions is GRANTED. Further responses and sanctions are due within 30 days of receipt of the final order.